

Court No. - 40

Case :- WRIT - C No. - 38068 of 2022

Petitioner :- Ram Nain Prasad

Respondent :- State Of U P And 2 Others

Counsel for Petitioner :- Jagadish Prasad Yadav

Counsel for Respondent :- C.S.C., Chetan Chatterjee

Hon'ble Mahesh Chandra Tripathi,J.

Hon'ble Vivek Kumar Singh,J.

Heard learned counsel for the petitioner and learned Standing Counsel for the State and Sri Chetan Chatterjee, learned counsel for respondent No.3/Executive Engineer (prescribed authority) Viduut Vitran Khand-2nd, U.P. Power Corporation, Azamgarh.

By means of the present writ petition, the petitioner is challenging impugned recovery certificate notice dated 14.10.2022 (Annexure-3 to the writ petition) issued by respondent no.1 against the petitioner for recovery of Rs.2,08,900/- plus recovery charges thereon.

Sri Chatterjee, learned counsel for respondent No.3/Executive Engineer (prescribed authority) Viduut Vitran Khand-2nd, U.P. Power Corporation, Azamgarh raised a preliminary objection regarding maintainability of the present writ petition on the ground that the Uttar Pradesh Electricity Supply Code, 2005 is a Code in itself. He submits that since the present matter relates to recovery of dues for the use of electricity, the petitioner has an efficacious remedy to file an appeal under Provision 6.14 of the Uttar Pradesh Electricity Supply Code, 2005.

At the outset learned counsel for the petitioner submits that he is willing to pay the recovery amount in easy installments.

Considering the objections, so raised by learned counsel for the Corporation, we are not inclined to entertain the writ petition. The petitioner has an efficacious remedy to take recourse under Provision 6.14 of the Uttar Pradesh Electricity Code, 2005. It is always open for the petitioner to avail the remedy available to him under the Code, 2005. The Court hopes and trusts that the competent authority shall proceed with the matter strictly in accordance with law.

With the aforesaid observations and leave, the present writ petition stands disposed of.

Order Date :- 2.1.2023

Dev/-